

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2023CUPP012195: JAMES WALD, et al. vs TRAVIS EDWARD MARTIN, et al.

09/09/2026 in Department 42

Motion to Strike Travis Martin's First Amended Cross-Complaint

- Motions:**
1. Plaintiff/Cross-Defendant Natalie Wald's Demurrer to the First Amended Cross- Complaint (*opposed*)
 2. Plaintiff/Cross-Defendant Natalie Wald's Motion to Strike the First Amended Cross-Complaint (*opposed*)

Tentative Rulings:

Plaintiff/Cross-Defendant Natalie Wald's Motion to Strike the First Amended Cross-Complaint is GRANTED, without leave to amend, except that the prayer for rescission may remain in the FACC.

Plaintiff/Cross-Defendant Natalie Wald's Demurrer to the First Amended Cross-Complaint is OVERRULED.

Notice to be provided by the moving party.

Cross-Complaint & Anti-SLAPP: Martin filed a cross-complaint against the Walds, asserting causes of action for negligence, menacing-duress, conspiracy, intentional infliction of emotional distress, and defamation.

The Walds' anti-SLAPP motion to the cross-complaint was granted, and they were awarded fees and costs in the amount of \$14,037.27 (\$198.45 in fees plus \$13,838.82 in costs).

Martin appealed. The Court of Appeal reversed the order granting the anti-SLAPP motion only as to the "menacing-duress" cause of action; [The "MENACING-DURESS" claim is based on allegations of Natalie's use of "threats, intimidation and blackmail to extort monetary compensation from [him]." Travis alleged Natalie "used her detailed knowledge" about his prior conviction and fear of returning to prison "to force [him] to pay her children's private school tuition and finance her lavish lifestyle" Travis sought "recovery of all funds paid and laid out under duress and menace by Natalie Wald according to proof."] The order granting the anti-SLAPP motion was upheld as to the other four causes of action. Since the order was reversed as to that single cause of action, the Court of Appeal also reversed the order granting fees and costs, with instructions for the trial court to "determine whether respondents are entitled to attorney fees and costs in connection with their anti-SLAPP motion and on appeal and, if so, in what amount."

First Amended Cross-Complaint ("FACC"): Martin filed his FACC against the Walds on 06/15/26, asserting causes of action for menace and duress/rescission/restitution. The gist of the allegations is that the Walds manipulated and extorted Martin into giving them money by threatening to report him for child sexual abuse if he did not pay

Discussion:

1. Motion to Strike

a. *General Rules*

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules Court, rule 3.1322, subd. (b).) The Court may, upon motion, or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a) & (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (*Perlman v. Municipal Court* (1979) 99 Cal.App.3d 568, 575.)

“A motion to strike out, or, as often termed, ‘a motion to strike,’ is traditionally used to reach certain kinds of defects in a pleading that are not subject to demurrer.” (5 Witkin, Cal. Proc. (5th ed. 2020) Plead § 1008.) “A motion to strike can also be used as a ‘scalpel’—to cut out any ‘irrelevant, false or improper’ matters inserted therein.” (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial (The Rutter Group rev. June 2024) ¶ 7:177.) Nevertheless, “use of the motion to strike should be cautious and sparing” and should not be used as “a procedural ‘line item veto’ for the civil defendant.” (*PH II v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.)

b. *Application*

On June 5, 2026, the Court considered, among other matters, Cross-Defendant Natalie Wald’s demurrer and motion to strike portions of the Cross-Complaint. The Court ruled that leave to amend would be limited to the second cause of action for menacing duress against Natalie Wald solely on the factual theory currently alleged in the original Cross-Complaint. No other causes of action, nor new cross-defendants, were authorized to be added to the new cross-complaint without leave of court.

Cross-Defendant Natalie Ward moves to strike the allegations of Rescission and Restitution on the ground that they fail to comply with the Court’s prior ruling on the demurrer. Specifically, Cross-Defendant asks the following to be stricken from the FACC:

- (1) the "RESCISSION / RESTITUTION" language from the cause-of-action heading;
- (2) paragraph 15 insofar as it alleges a cause of action for "menace and duress, rescission, restitution, and related relief" and invokes Civil Code sections 1689, 1691, and 1692;
- (3) paragraph 42, alleging that service of the First Amended Cross-Complaint constitutes notice of rescission and an offer to restore;
- (4) paragraphs 53, 54, and 55, asserting statutory rescission under Civil Code sections 1689, 1691, and 1692;

(5) paragraph 56, insofar as it seeks restitution and disgorgement as part of the unauthorized rescission theory; and

(6) the portions of the Prayer seeking rescission, restitution, disgorgement, constructive trust, equitable lien, tracing, accounting, equitable adjustment, restoration of the status quo, and other relief premised on the unauthorized rescission and restitution theories.

Cross-Defendant argues these allegations exceed the scope of what was authorized by the Court. The Court agrees. The addition of the claims for Rescission/Restitution are “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, subd. (b).) The addition of these allegations exceeds the scope of permitted amendment although the claim for rescission as a remedy is inherent in the allegations as they existed and does not really add anything to the cross-complaint.

The motion is granted without leave to amend, except that the prayer for rescission may remain in the FACC.

2. Demurrer

a. *General Rules*

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Concerning the legal sufficiency of a pleading, the sole issue on demurrer is whether the facts pleaded, if true, state a valid cause of action – i.e., if the complaint pleads facts that would entitle the plaintiff to relief. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 339.) It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.)

b. *Failure to State a Claim*

Cross-Defendant argues that the FACC fails to state a claim because the menace and duress claim (1) does not plead an unlawful threat, (2) does not plead a threat coupled with any specific demand or transaction, and (3) lacked reasonable alternatives.

Menacing/duress is the civil equivalent of the crime of extortion. (*Tran v. Nguyen* (2023) 97 Cal.App.5th 523, 534.) “Extortion is the obtaining of property or other consideration from another, with his or her consent, or the obtaining of an official act of a public officer, induced by a wrongful use of force or fear, or under color of official right.” (Pen. Code, § 518, subd. (a).) A cause of action for menacing/duress is a contract claim—not a tort claim—that allows for rescission of a contract/transaction/payment, but not emotional distress damages. (*Tran v. Nguyen* (2023) 97 Cal.App.5th 523, 534-35.)

Unlawful Threat

The court in *Tran v. Nguyen* (2023) 97 Cal.App.5th 523 made clear that there is no requirement that the victim be innocent of the crime that defendant threatens to expose.

Specific Demand or Transaction

Cross-Defendant argues that the FACC does not identify any specific demand by Cross-Defendant that caused a specific payment, and argues that this renders the claim deficient. However, there is no specificity requirement and the demand for money/benefits in exchange for not reporting Martin is adequately alleged. The FACC alleged “The threats were tied to money. Natalie admitted that around November 3, 2021, Martin discussed cutting financial ties connected to her accounting work and the Wald family's cell phone coverage. She admitted that the phone and car-insurance benefits were approximately \$400 per month, almost \$5,000 per year.” (FACC, ¶ 32.) “On or about November 5, 2021, less than 36 hours after Martin attempted to end the financial relationship, Natalie carried out the threatened accusation by reporting sexual-abuse allegations to law enforcement.” (FACC, ¶ 35.) The FACC adequately alleges a coercive demand.

Reasonable Alternatives

“When a party pleads economic duress, that party must have had no ‘reasonable alternative’ to the action it now seeks to avoid (generally, agreeing to a contract). If a reasonable alternative was available, and there hence was no compelling necessity to submit to the coercive demands, economic duress cannot be established. Whether the party asserting economic duress had a reasonable alternative is determined by examining whether a reasonably prudent person would follow the alternative course, or whether a reasonably prudent person might submit. [Citation]. Clearly this inquiry is a factual one, rarely if ever susceptible to determination on demurrer. Similarly, in applying the Blain test (three prongs: examining analogous case law, the nature of plaintiffs' misconduct, and the relationship of plaintiffs' misconduct to plaintiffs' injuries), it might be asked whether plaintiffs' conduct was coerced, or whether plaintiffs had a reasonable alternative.” (*CrossTalk Productions, Inc. v. Jacobson*, *supra*, 65 Cal.App.4th 631, 644.) Whether Martin had a reasonable alternative to compliance with the alleged demand is a factual issue. He has adequately alleged that he had no reasonable alternative.